

The complaint

Mr and Mrs O complain about the decline of a storm damage claim made under their home insurance policy with U K Insurance Limited trading as Direct Line Home Insurance ("UKI").

What happened

In summary, Mr and Mrs O live in a property that was built in 2016 with their children. They held a home insurance policy which was underwritten by UKI. They raised a storm damage claim on 22 September 2023 as water was entering the property following bad weather.

UKI declined the claim. It said even in the absence of storm conditions, it sent a surveyor to the property who concluded, broadly, there was no evidence of storm damage, and the likely cause was the result of the volume of rain allowing guttering to overflow. UKI therefore said external damage was due to maintenance issues, or possibly a defect, but it covered the resulting internal damage under the accidental damage section of the policy.

Mr and Mrs O told UKI they were unhappy with its reasoning and claim decision, and the way in which the surveyor conducted their inspection. They also said they felt coerced into accepting a low cash settlement offer for the internal damage – which was later increased following another visit. As such, they raised a complaint to UKI.

UKI responded to it in December 2023. It maintained its decision on the storm claim, but it offered to pay Mr and Mrs O £200 compensation for some service issues they faced. As Mr and Mrs O remained unhappy, they asked our Service for an impartial review.

The Investigator didn't recommend the complaint be upheld and as Mr and Mrs O didn't agree, the case was referred to me for a final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Several points have been raised in relation to this matter – I haven't addressed each one individually. Instead, I've focused on what I consider to be the pertinent points. I don't mean any discourtesy to either party by this; it simply reflects the informal nature of our Service.

Our Service has a well-established approach to complaints about storm claims, we ask three questions:

- Were storm conditions present on, or around, the reported date of loss?
- Is the damage reported consistent with damage typically caused by storms?
- Was the storm the main cause of damage?

If the answer to any of these questions is 'no', then it's unlikely the claim would succeed.

I find the answer to question one is 'no'. I say this because I've reviewed weather data

records from weather stations closest to Mr and Mrs O's property. This data doesn't show there were storm conditions (usually defined as violent winds accompanied by heavy rainfall or snow) near Mr and Mrs O's property on or around the date of loss.

While I note Mr and Mrs O disputed this and have provided a Met office weather warning, this warning covered a large area and was not specific to Mr and Mrs O's area. Therefore, it follows that I'm satisfied it was reasonable for UKI to decline the storm damage claim because, based on the evidence available, there was no storm.

In any case, if there was a storm, I'm not persuaded this claim should succeed. I say this because while the roof of the property needed repairs, and a storm can cause damage to a roof, I'm not satisfied the damage Mr and Mrs O claimed for was caused by a storm. As I understand it, no tiles were damaged, or displaced. Instead, the evidence available suggests the guttering backed up, allowing water to seep through the leadwork at edges of the roof.

Further, the repairs arranged and paid for by Mr and Mrs O included replacing battens and felt. UKI has said this would be deemed a maintenance issue, or possibly a defective guttering system. Neither would be covered under the storm damage section of the policy, or any other sections for that matter.

I note Mr O's comments regarding the policy wording and its lack of explanation on how poor weather must be for it to be considered a storm. But I find UKI took reasonable steps to demonstrate how it approached claims involving storm damage – which follows a similar approach to the ABI's accepted definition.

Mr O also queried why UKI rejected the external damage (under the storm section) but went on to accept and cover the internal damage. That's because damage was considered under two separate sections of the policy. The internal damage was covered under the accidental damage section, which responds to damage that is sudden and unintentional physical damage that happens unexpectedly. UKI were satisfied the internal damage Mr and Mrs O reported met this definition. I'm satisfied that's fair.

So, in concluding here, I'm satisfied UKI's decision to decline the storm damage claim was fair, reasonable, and not contrary to the evidence available. But I do find it ought to have handled matters much better at times – and with a more appropriate level of customer service.

For example, Mr and Mrs O were provided with a response to their claim by an agent who had mixed their claim up with another unrelated one. Mr and Mrs O also said they felt pressured into accepting a low settlement offer for the internal damage without the agent reviewing the information they had provided or acknowledging damage had gotten worse.

UKI sent another contractor out to reassess the internal damage which resulted in the cash settlement being increased. I find this was a reasonable step for UKI to take. But returning to the service issues, overall, it's understandable these would have added to Mr and Mrs O's overall distress and frustration. But I find UKI's £200 compensation offer to recognise this to be fair, reasonable, and proportionate here. So, it follows I don't require UKI to take any further action here.

I accept my decision will disappoint Mr and Mrs O. But it ends what we – in attempting to informally resolve their dispute with UKI – can do for them.

My final decision

For the reasons I've mentioned above, I've decided not to uphold it.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs O and Mr O to accept or reject my decision before 23 August 2024.

Liam Hickey
Ombudsman